

[1 EDW. 8. &
1 GEO. 6.]

*Hastings Extension
Act, 1937.*

[Ch. lxiv.]



CHAPTER lxiv.

An Act to extend the boundaries of the borough of Hastings and for purposes incidental thereto. A.D. 1937.
[6th July 1937.]

WHEREAS the borough of Hastings (in this Act called "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation"):

And whereas the unrepealed provisions of the local Acts specified in Part I of the First Schedule to this Act and the Orders specified in Parts II and III of that schedule are in force in the borough:

And whereas the parishes of Hollington Rural Ore Guestling and Fairlight in the rural district of Battle are respectively situated in the administrative county of East Sussex:

And whereas all the said parishes except the parish of Guestling immediately adjoin the borough and the parish of Guestling immediately adjoins the parishes of Ore and Fairlight:

And whereas it is expedient to alter and extend the boundaries of the borough so as to include therein parts of the said parishes:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

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—
23 & 24
Geo. 5. c. 51.

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Hastings Extension Act 1937.

Interpre-
tation.

2. In this Act unless the subject or context otherwise requires—

“ The appointed day ” means the first day of April nineteen hundred and thirty-eight ;

“ Existing ” in relation to any area altered by this Act means existing immediately before the appointed day ;

“ The existing borough ” means the existing borough of Hastings ;

“ The borough ” means until the appointed day the existing borough and thereafter the existing borough as extended by this Act ;

“ The council ” means the council of the borough ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough acting by the council ;

“ The mayor ” “ the town clerk ” and “ the treasurer ” mean respectively the mayor the town clerk and the treasurer of the borough ;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough ;

“ The local Acts ” means the local Acts specified in Part I of the First Schedule to this Act the Orders specified in Parts II and III of that

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schedule and so much of the confirmation Acts specified in that Part II as relates to those Orders;

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PART I.
—cont.

“The borough map” means the map marked “Map of the borough of Hastings as extended by the Hastings Extension Act 1937” and signed in triplicate by the Right Honourable the Earl of Onslow the chairman of the committee of the House of Lords to which the Bill for this Act was referred one copy of which has been deposited in the Parliament Office in the House of Lords one in the Committee and Private Bill Office of the House of Commons and one with the town clerk at his office;

“The county” and “the county council” mean respectively the administrative county of East Sussex and the county council of that county;

“The rural district” and “the rural council” mean respectively the rural district of Battle and the rural district council of Battle;

“The parish councils” means the parish councils of Hollington Rural Ore Guestling and Fairlight;

“The added part of Hollington Rural” “the added part of Ore” “the added part of Guestling” and “the added part of Fairlight” mean respectively the parts of the existing parishes of Hollington Rural Ore Guestling and Fairlight which are respectively described in Parts II III IV and V of the Second Schedule to this Act;

“The excluded part of Hollington Rural” “the excluded part of Ore” “the excluded part of Guestling” and “the excluded part of Fairlight” mean the remaining parts of those parishes respectively;

“The added areas” means the added part of Hollington Rural the added part of Ore the added part of Guestling and the added part of Fairlight;

“The parish of Crowhurst” “the parish of Westfield” “the parish of Ore” “the parish of

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PART I.
—cont.

Guestling ” and “ the parish of Fairlight ” mean respectively the existing parishes of Crowhurst Westfield Ore Guestling and Fairlight as altered by this Act;

38 & 39 Vict.
c. 55.

“ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same and includes the Public Health Act 1936;

26 Geo. 5. &
1 Edw. 8.
c. 49.

“ The Minister ” means the Minister of Health;

“ Revenues of the Corporation of the existing borough ” includes the general rate fund of the existing borough and all rates exchequer contributions and other revenues whether arising from land or undertakings or from any other source receivable by the mayor aldermen and burgesses of the existing borough and “ revenues of the Corporation of the extended borough ” includes the general rate fund of the existing borough as extended by this Act and all rates exchequer contributions and other revenues whether arising from land or undertakings or from any other source receivable by the mayor aldermen and burgesses of the existing borough as extended by this Act.

Commence-
ment of Act.

3. Save as otherwise expressly provided this Act shall come into operation on the appointed day :

Provided that for the purposes of—

- (a) the compilation alteration or rearrangement of any register of electors made under the Representation of the People Acts;
- (b) the qualification of candidates for election to the office of councillor of the borough;
- (c) any election to be held in the year nineteen hundred and thirty-eight for any area affected by this Act and all proceedings preliminary or relating thereto; and
- (d) the preparation of any precept or contribution order to be issued or made in respect of any period commencing on or after the appointed day;

this Act shall operate from the date of its passing.

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PART II.

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EXTENSION OF BOROUGH.

4.—(1) The boundary of the existing borough shall be altered so as to include in addition to the area of the existing borough the added part of Hollington Rural the added part of Ore the added part of Guestling and the added part of Fairlight. Extension of borough.

(2) The existing borough as extended by this Act is delineated on the borough map and described in the Second Schedule to this Act and if there shall be any discrepancy between the borough map and the said description the said description shall prevail Notice of this provision shall be set forth on the copies of the borough map which are to be sent to the officers and departments mentioned in the section of this Act of which the marginal note is "Deposit of maps."

(3) The existing borough as extended by this Act shall be the borough and county borough of Hastings for all purposes.

5.—(1) Copies of the borough map deposited with the town clerk such copies being certified by him to be true shall be sent by him as soon as may be after the passing of this Act to the clerk of the county council to the clerk to the rural council to the Minister to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Transport to the Minister of Agriculture and Fisheries to the Postmaster-General and to the Electricity Commissioners. Deposit of maps.

(2) Copies of or extracts from the borough map deposited with the town clerk which are certified by him to be true shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of the map so far as it relates to the boundary of any area altered by this Act.

(3) The borough map deposited with the town clerk shall at all reasonable times be open to inspection by any person liable to any rate leviable within the borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the

A.D. 1937. Corporation All fees so received shall be carried to the general rate fund.

PART II.

—cont.

Alteration
of parishes.

6.—(1) The added areas shall be added to and form part of the parish of Hastings.

(2) So much of the excluded part of Hollington Rural as is bounded on the north and west by the boundary between the existing parish of Hollington Rural and the existing parish of Crowhurst on the east by the boundary of the borough as extended by this Act and on the south by the boundary between the existing borough of Bexhill and the existing parish of Hollington Rural and so much of the excluded part of Hollington Rural as comprises (a) the enclosures numbered 43 44 and 46 in the parish of Hollington Rural on the 1/2500 Ordnance map Sussex (East) (edition of 1929) sheet LVIII.5 and (b) those portions of the enclosures numbered 45 and 72 in the said parish on the said sheet which are not included in the borough as extended by this Act shall be added to the existing parish of Crowhurst and therewith form the parish of Crowhurst.

(3) So much of the excluded part of Hollington Rural as is not added to the existing parish of Crowhurst shall be added to the existing parish of Westfield and therewith form the parish of Westfield.

(4) The excluded part of Ore shall form the parish of Ore.

(5) The excluded part of Guestling shall form the parish of Guestling.

(6) The excluded part of Fairlight shall form the parish of Fairlight.

County
electoral
divisions.

7. The added areas shall be separated from the electoral divisions of the county of which they respectively form part immediately before the appointed day.

PART III.

COUNCILLORS AND OTHER MEMBERS OF LOCAL
AUTHORITIES.Existing
mayor alder-
men and
councillors.

8. Subject to the provisions of this Act the persons who hold office immediately before the appointed day as mayor aldermen and councillors of the existing borough shall on the appointed day become the mayor aldermen

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and councillors of the borough but shall respectively retire from office on the day on which they would have retired from office if this Act had not been passed.

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PART III.
—cont.

9.—(1) This section shall come into operation on the date of the passing of this Act but any scheme or Order in Council made under the provisions hereinafter mentioned as applied by this section shall not take effect until the appointed day except for the purposes of any election of councillors which may be required by such scheme or Order in Council.

Alterations
of wards and
of numbers
of aldermen
and coun-
cillors.

(2) The council shall not later than the first day of November nineteen hundred and thirty-seven or such later date as the Secretary of State may allow present a petition under and in accordance with the provisions of section 25 of the Local Government Act 1933 praying for any one or more of the things mentioned in paragraphs (b) (c) (d) and (e) of subsection (1) of that section. Provided that for the purposes of this section proposals which provide for an increase of the number of the wards of the borough without any alteration of the boundaries of the wards of the existing borough shall be deemed to be proposals to give effect to the prayer of a petition for an alteration of the number and of the boundaries of the wards of the borough.

(3) Failing presentation by the council of a petition under subsection (2) of this section section 25 of the Local Government Act 1933 shall have effect as if a petition praying for an alteration of the boundaries of the wards of the borough had been presented by the council to His Majesty and the requirements of subsection (1) of the said section 25 had been complied with and the petition stood referred to the Secretary of State.

(4) Any scheme or Order in Council made under the said provisions as applied by this section may provide that the first term of office of any additional councillors elected in pursuance thereof shall expire on the ordinary day of retirement of councillors in the year nineteen hundred and forty-one.

(5) Any Order in Council made under the said provisions as applied by this section may be altered or varied by a subsequent Order in Council made on the application of the council by petition under the provisions of section 25 of the Local Government Act 1933.

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PART III.
—cont.

(6) For the purposes of this section the provisions of this Act altering the boundaries of the borough shall be deemed to have come into operation on the date of the passing of this Act.

Qualifica-
tion for
election and
office.

10. For the purposes of the application to the borough of the provisions of paragraph (c) of section 57 of the Local Government Act 1933 the added areas shall be deemed to have always formed part of the borough.

County
councillors.

11. The persons who immediately before the appointed day are the county councillors respectively representing the Hollington Beckley and Winchelsea electoral divisions of the county shall be deemed to have been elected to represent those divisions respectively as altered by this Act and shall retire on the date on which they would have retired respectively if this Act had not been passed.

Rural
district
councillors.

12.—(1) The person who immediately before the appointed day is rural district councillor for the existing parish of Hollington Rural combined with the existing parish of Crowhurst shall represent the parish of Crowhurst on the rural council until he would go out of office in the ordinary course.

(2) The persons who immediately before the appointed day are rural district councillors for the existing parishes of Westfield Ore Guestling and Fairlight shall continue to represent the parishes of Westfield Ore Guestling and Fairlight respectively on the rural council until they would go out of office in the ordinary course.

(3) Subject to the foregoing provisions of this section the rural council shall continue and shall be deemed to have been elected for and shall be the rural district council for the rural district as altered by this Act.

Parish
councillors
for altered
parishes.

13.—(1) The parish councils of the existing parishes of Crowhurst Westfield Ore Guestling and Fairlight shall be the parish councils of those parishes as respectively altered by this Act.

(2) Any person immediately before the appointed day in office as parish councillor for any of the said existing parishes shall on the appointed day become a parish councillor for that parish as altered by this

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Act and shall retire from office on the day on which he would have retired from office if this Act had not been passed.

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PART III.
—cont.

PART IV.

POWERS PROPERTY LIABILITIES &C. OF EXISTING AUTHORITIES.

14. Subject to the provisions of this Act all property immediately before the appointed day vested in the Corporation for the benefit of the existing borough (not being property held on any charitable trust) shall by virtue of this Act be held by the Corporation for the benefit of the borough and the Corporation shall hold enjoy and exercise for the benefit of the borough all the powers privileges and rights which immediately before that day are exerciseable by or vested in the Corporation for the benefit of the existing borough and all liabilities which immediately before the appointed day attach to the Corporation in respect of the existing borough shall on and after that day attach to them in respect of the borough.

Corporation
property
liabilities
&c.

15.—(1) So much of any sums borrowed by the Corporation or by their predecessors as immediately before the appointed day is owing and charged upon a fund or rate of the existing borough or the revenues of the Corporation of the existing borough shall be charged upon the revenues of the Corporation of the extended borough.

Mortgage
debts of
Corporation.

(2) All borrowed moneys to which this section applies shall be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable and all interest due on any such moneys outstanding at any time shall be paid out of the revenues of the Corporation of the extended borough.

16. Subject to the provisions of this Act and to any necessary adjustments—

Mortgage
debts of
rural
council.

(1) The liability for repayment of so much of any moneys borrowed by the rural council (or their

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PART IV.
—cont.

predecessors) for a purpose relating exclusively to any part of the added areas as is owing at the appointed day and for the payment of the interest thereon shall by virtue of this Act be transferred to and attach to the Corporation but shall be a matter for adjustment under this Act:

- (2) So much as is at the appointed day owing in respect of any moneys borrowed as aforesaid together with so much of any sums borrowed by the Corporation as is at the appointed day owing and charged upon a fund or rate of the existing borough or the revenues of the Corporation of the existing borough shall by virtue of this Act be charged upon the revenues of the Corporation of the extended borough :
- (3) All borrowed moneys to which this section applies shall be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable and all interest due on any such moneys outstanding at any time shall be paid out of the revenues of the Corporation of the extended borough :
- (4) Nothing in this Act shall prejudice or affect any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which is transferred to the Corporation by subsection (1) of this section or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Act had not been passed and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Act the power may continue to be exercised as if this Act had not been passed and the general rate shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Act had not been passed.

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17.—(1) Subject to the provisions of this Act and of section 12 of the Coroners (Amendment) Act 1926 the powers rights privileges authorities and duties of the county council and the standing joint committee of the county respectively shall as from the appointed day cease to be exerciseable by or attach to that council and committee so far as regards the added areas.

(2) The rural council and the parish councils of Ore Guestling and Fairlight shall cease to exercise any powers or discharge any duties within any part of the added areas.

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PART IV.

—cont.

Jurisdiction
of county
and other
authorities
to cease.

16 & 17

Geo. 5. c. 59.

18. Subject to the provisions of this Act—

(1) any property or liabilities which immediately before the appointed day is or are vested in or attach to the rural council or any of the parish councils (other than the parish council of Hollington Rural) in relation exclusively to any part of the added areas shall by virtue of this Act be transferred to and vest in or attach to the Corporation but shall be a matter for adjustment under this Act :

Property
and liabili-
ties of
certain of
rural and
parish
councils.

(2) any property or liabilities which immediately before the appointed day is or are vested in or attach to the rural council or any of the parish councils (other than as aforesaid) in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under this Act.

19. Subject to the provisions of this Act any powers and duties of any of the parish councils so far as they relate to or affect any part of the added areas shall be vested in and imposed on the Corporation.

Powers of
parish
councils.

20. All the powers rights duties capacities liabilities and obligations of an urban district council and the powers in relation to the chargeability of expenses with which the rural council are invested in pursuance of any order issued by the Local Government Board or the Minister under the Public Health Acts in respect of any contributory place which is altered by this Act shall be deemed to vest in and attach to the rural council in respect of the said contributory place as so altered.

Urban
powers &c.
in excluded
parts of
parishes.

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PART IV.

—cont.

Dissolution
of Holling-
ton Rural
parish
council and
transfer of
property
and liabili-
ties thereof
Liquidation
of current
debts and
liabilities.

15 & 16

Geo. 5. c. 90.

21.—(1) The parish council of Hollington Rural shall cease to exist and all property and liabilities which immediately before the appointed day is or are vested in or attach to that parish council shall by virtue of this Act be transferred to and vest in or attach to the Corporation but shall be a matter for adjustment under this Act.

(2) The parish council of Hollington Rural shall liquidate so far as practicable before the appointed day all current debts and liabilities incurred by them.

(3) If default is made by the said parish council in complying with the requirements of subsection (2) of this section—

(a) the Corporation may in accordance with subsection (5) of section 2 of the Rating and Valuation Act 1925 make and levy over the area of such portion of the borough as is co-terminous with the added part of Hollington Rural as an additional item of the general rate such amount in the pound as will be sufficient to defray the liability of that area in respect of the current debts and liabilities of the said parish council;

(b) any such additional item of the general rate may be made retrospectively to raise money for the payment of charges and expenses incurred at any time within one year before the appointed day by the said parish council.

PART V.

ADMINISTRATION OF JUSTICE AND COUNTY
ADMINISTRATION.

Jurisdiction
of coroner
quarter
sessions &c.
extended.

22.—(1) The powers and duties of the coroner for the borough and the liberties thereof and of the quarter sessions recorder clerk of the peace and justices of the peace for the existing borough and of the clerk to those justices and of the police constables and other peace officers of the existing borough shall extend to and apply throughout the borough :

Provided that—

(a) every person committing an offence in any part of the added areas prior to the appointed day

shall be tried and dealt with as if this Act had not been passed; A.D. 1937.

- (b) every proceeding which prior to the appointed day shall have been begun by or before any justice or any coroner in relation to any matter arising in or concerning any part of the added areas may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

PART V.
—cont.

(2) The added areas shall cease to form part of any petty sessional division of the county and shall be transferred from the Rape of Hastings coroner's district to the district of the coroner for the borough and the liberties thereof.

23. Subject to the provisions of this Act any county police station or any site therefor situate within the added areas and any residence for a constable or any cell so situate and the fittings and furniture of any such police station residence or cell shall by virtue of this Act be transferred to and vest in the Corporation as from the appointed day for all the estate and interest therein of the county council and an adjustment under this Act shall be made for the purposes of this section. County police stations &c.

24.—(1) An equitable adjustment shall be made between the county and the borough respecting the interest of the added areas in any compensation fund constituted under section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act. Adjustment for purposes of licensing.
10 Edw. 7. &
1 Geo. 5.
c. 24.

(2) Such adjustment shall be made by agreement between the compensation authorities (as defined by the Licensing (Consolidation) Act 1910) for the county and for the borough within twelve months from the appointed day or such extended period as may be allowed by the Secretary of State or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of any such adjustment section 151 of the Local Government Act 1933 shall apply subject to the modification that the arbitrator shall be appointed by the Secretary of State instead of by the Minister.

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PART V.
—cont.Settlement
and irre-
movability
and transfer
of liability
for main-
tenance of
poor.

25.—(1) Every person resident in the added areas immediately before the appointed day who has acquired or is in the course of acquiring—

(a) a settlement in the county by reason of residence birth or other qualification therein; or

(b) a status of irremovability from the county by reason of residence therein;

shall be deemed to have acquired or to be in the course of acquiring thereby as the case may require a settlement in or status of irremovability from the borough.

(2) For the purposes of this section consecutive periods of residence in any portions of the county shall (if and so far as those periods would immediately before the appointed day be reckoned for the purposes of determining questions of settlement in or irremovability from the county) be aggregated and shall be reckoned as continuous residence in that part of the county in which the person was residing immediately before the appointed day.

(3) Where immediately before the appointed day a person is in receipt of poor relief from the county council as an inmate of an institution or of rate aid from the county council as an inmate of an institution for persons of unsound mind and was resident in the added areas immediately before he last commenced to receive poor relief or rate aid he shall for the purposes of the foregoing provisions of this section be deemed to be resident in the added areas immediately before the appointed day.

(4) The liability for the cost accruing on and after the appointed day of the maintenance in any institution of any inmate of that institution to whom subsection (3) of this section applies shall by virtue of this Act be transferred to and attach to the Corporation but this subsection shall not prevent the Corporation from obtaining an order of removal or an adjudication of the chargeability of any person who notwithstanding the provisions of this section is liable to be removed or made chargeable to any other county or county borough.

(5) Nothing in this section shall authorise the inclusion in any computation of a period of residence for the purposes of this section of such residence as is

excluded by subsection (1) of section 93 of the Poor Law Act 1930 from a computation of residence for the purpose of the acquisition of a status of irremovability or shall prevent any residence so excluded from breaking the continuity of residence for the purpose of the acquisition by residence of a settlement.

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PART V.
—cont.

20 & 21
Geo. 5. c. 17.

26.—(1) Subject to the provisions of the Education Act 1921 and of this Act—

Transfer of
public ele-
mentary
schools &c.
to Corpora-
tion.
11 & 12
Geo. 5. c. 51.

- (a) all public elementary schools provided by any local education authority and situate in the added areas and the furniture fittings books and apparatus belonging to such authority of any public elementary school in the added areas shall by virtue of this Act be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of such local education authority;
- (b) all contracts debts and liabilities which immediately before the appointed day are existing or are owing by or attach to any such local education authority in respect exclusively of any public elementary school in the added areas or of the furniture fittings books or apparatus or with respect to the officers teachers and servants of any public elementary school in the added areas and to school attendance officers school nurses and other persons employed whole time in connection with education services exclusively in the added areas shall by virtue of this Act enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority;
- (c) an adjustment under this Act shall be made for the purposes of this section;
- (d) subject to any adjustment which may hereafter be made the liability for the repayment of so much of any loan raised exclusively in respect of any public elementary school or in respect of the furniture fittings books or apparatus transferred to and vested in the Corporation by virtue of this Act as is owing immediately

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PART V.
—cont.

before the appointed day and the liability for the payment of interest on that part of any such loan shall by virtue of this Act be transferred and attach to the Corporation as the local education authority and so much of any such loan as is owing at the appointed day shall be charged on the revenues of the Corporation of the extended borough and shall be repaid by the Corporation within the period (if any) for which that part of the loan was originally sanctioned or within which that part of the loan is otherwise required to be repaid or is made repayable.

(2) In this section “public elementary school” includes the site and school house and also any land acquired and held by a local education authority for purposes of elementary education.

Education
byelaws and
managers.

27.—(1) Any byelaws under the Education Act 1921 or any enactment repealed by that Act which may be in force in the existing borough immediately before the appointed day shall apply to the borough until revoked or altered by the Corporation in substitution for any such byelaws which may be in force in the added areas.

(2) Every manager of any elementary school in the added areas who was appointed by the county council or by any parish council shall vacate office on the appointed day.

Register of
nursing
homes.

28.—(1) The clerk of the county council shall before the appointed day send to the town clerk a copy of every entry in the register of the county council under section 187 of the Public Health Act 1936 or the corresponding enactments repealed by that Act which relates to any nursing home situate within the added areas and the town clerk shall include in the register of the Corporation under that section or those enactments the particulars furnished by the clerk of the county council.

(2) Any exemption in force immediately before the appointed day from the operation of the provisions of Part VI of the Public Health Act 1936 relating to nursing homes or the corresponding enactments

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repealed by that Act which may have been granted by the county council in respect of premises within the added areas shall continue in force until the exemption shall expire.

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PART V.
—cont.

29.—(1) The Minister may by order at any time after the passing of this Act make such provisions as appear to him to be necessary for transferring to the insurance committee for the borough such of the property rights and liabilities of the insurance committee for the county as relate to persons resident in the added areas.

Insurance
committees.

(2) An order made under this section may authorise the insurance committee for the county to continue to act as insurance committee for the added areas until such date not being later than the thirty-first day of December nineteen hundred and thirty-eight as may be specified in the order and may for that purpose postpone the operation of this Act so far as it relates to the rights and duties of the respective insurance committees for the county and the borough until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient.

(3) An order under this section may be revoked revised or amended by an order made in like manner as the original order.

(4) Subject to any order under this section the persons who immediately before the appointed day are members of the respective insurance committees for the county and the existing borough shall be deemed to have been appointed or elected as and shall be the members of the respective insurance committees for the county as altered by this Act and the borough.

30. Subject to the provisions of any scheme of the county council under section 16 of the Rating and Valuation Act 1925 relating to any area which after the appointed day will form or forms part of the county the representatives of the East Sussex (East) assessment area on the county valuation committee of the county council shall represent that assessment area as altered by this Act.

County
valuation
committee.

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PART V.

—cont.

Guardians
committee
areas and
administra-
tive
schemes.
19 & 20
Geo. 5. c. 17.

31. The administrative scheme made by the county council under Part I of the Local Government Act 1929 on the thirtieth day of July nineteen hundred and twenty-nine (as amended on the fourteenth day of November nineteen hundred and thirty-three) and approved by the Minister on the eighth day of February nineteen hundred and thirty-four shall cease to extend to the added areas or any part thereof and the administrative scheme made by the Corporation under the said Part I on the thirtieth day of July nineteen hundred and twenty-nine and approved by the Minister on the nineteenth day of November nineteen hundred and twenty-nine shall extend to the added areas.

PART VI.

LOCAL ACTS ADOPTIVE ACTS BYELAWS &C.

Local Acts
and Orders.

32.—(1) Subject to the provisions of this Act the unrepealed provisions of the local Acts and of any other local Act (including any Act passed or to be passed in the present session of Parliament) or of any other Order confirmed by or having the effect of an Act of Parliament and affecting the existing borough or the mayor aldermen and burgesses of the existing borough as the same respectively are in force within the existing borough immediately before the appointed day shall extend and apply to the borough and any reference therein to the existing borough and the mayor aldermen and burgesses of the existing borough shall respectively be deemed to refer to the borough and the Corporation.

(2) Any provisions in any local Act or any Order confirmed by or having the effect of an Act of Parliament for the benefit or protection of the parish councils or any of them or of the rural council or of the county council or of the standing joint committee of the county or their respective predecessors shall so far as they relate to or affect any part of the added areas from and after the appointed day enure for the benefit and protection of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to any such council or committee or their predecessors as the case may be.

33. Nothing in this Act shall prejudice or affect the existing rights and powers of any company body or person authorised to supply gas.

PART VI.
—cont.
Saving for
gas rights and
interests.

34.—(1) The provisions of—

The Museums and Gymnasiums Act 1891 (so far as the same relates to museums);

The Public Libraries Acts 1892 to 1919; and

The Local Government and other Officers' Superannuation Act 1922;

Adoptive
Acts.
54 & 55 Vict.
c. 22.

12 & 13 Geo. 5.
c. 59.

and the unrepealed provisions of—

The Public Health Acts Amendment Act 1890;

The Infectious Disease (Prevention) Act 1890; and

Part II of the Public Health Act 1925;

53 & 54 Vict.
c. 59.

53 & 54 Vict.
c. 34.
15 & 16 Geo. 5.
c. 71.

shall be in force within and apply to the borough.

(2) The provisions of any adoptive Act in force in any part of the added areas immediately before the appointed day shall subject to the provisions of this section cease to be in force within and apply to such part of the added areas.

(3) Any order under the Public Health Act 1936 or the Infectious Disease (Notification) Act 1889 or under any adoptive Act mentioned in subsection (1) of this section which is in force immediately before the appointed day throughout the existing borough shall extend and apply to the added areas and any such order in force immediately before that day within the added areas or any part thereof shall save as hereinbefore provided cease to be in force in the added areas or such part thereof.

52 & 53 Vict.
c. 72.

35. Any order made under the Shop Hours Act 1904 or under the Shops Acts 1912 to 1936 and in force immediately before the appointed day in any area affected by this Act shall subject to the provisions of such Acts remain in force and apply to the area to which it applies immediately before the appointed day.

Orders under
Shop Hours
Act 1904 or
Shops Acts
1912 to 1936.
4 Edw. 7.
c. 31.

36. Any order under the Wild Birds Protection Acts 1880 to 1908 which is in force immediately before the appointed day in the existing borough shall extend to the added areas and any order under those Acts which is then in force in the county shall cease to extend to the added areas.

Orders
under Wild
Birds Pro-
tection Acts
1880 to
1908.

A.D. 1937.

PART VI.

—cont.

Powers
under
section 33
of Local
Government
Act 1894.
56 & 57 Vict.
c. 73.

37. Subject to the provisions of any order which the Minister may hereafter make the provisions of any order heretofore made by the Local Government Board or the Minister and conferring upon the council of the existing borough any of the powers relating to the matters mentioned in section 33 of the Local Government Act 1894 and in that order so far as such powers are still in force or still have effect shall be deemed to have effect as if any reference in those provisions to the existing borough the council of the existing borough and the existing parish of Hastings extended and applied to the borough the council of the borough and the parish of Hastings as extended by this Act.

Orders
under Public
Health Acts
Amendment
Act 1907 or
Public
Health Act
1925.
7 Edw. 7.
c. 53.

38. Subject to any order which the Minister or the Secretary of State may make on or after the appointed day the following provisions shall have effect as regards orders under the Public Health Acts Amendment Act 1907 or the Public Health Act 1925:—

- (1) The provisions of any order made before the appointed day and declaring to be in force throughout the existing borough any parts or sections of either of those Acts shall have effect as if any reference in that order to the existing borough extended and applied to the borough and as if such parts or sections were accordingly declared to be in force within the borough:
- (2) Any other order under either of those Acts which is in force immediately before the appointed day throughout the existing borough shall extend and apply to the added areas:
- (3) The provisions of any order made before the appointed day and declaring to be in force within any part of the added areas any parts or sections of either of those Acts shall cease to apply to such part of the added areas and the parts or sections declared by any such order to be in force shall save as hereinbefore provided cease to be in force within such part of the added areas but this provision shall not prejudice or affect any proceedings which are pending on the appointed day.

39.—(1) All byelaws made under the Public Health Acts or under section 11 of the Petroleum (Consolidation) Act 1928 which are in force within the existing borough or within any part of the added areas immediately before the appointed day shall continue to apply to the existing borough or to such part of the added areas as the case may be until repealed or altered by byelaws made by the Corporation.

(2) Any byelaws made under the Advertisements Regulation Acts 1907 and 1925 which immediately before the appointed day are in force within any part of the added areas shall continue to apply to such part for a period of three years after the appointed day unless they are previously repealed or altered by byelaws made by the Corporation but shall on the expiration of that period of three years cease to be in force within the added areas.

(3) (a) Notwithstanding the foregoing provisions of this section any such byelaw in force in the existing borough may by a byelaw made by the Corporation be continued and be extended with or without modification to the added areas.

(b) As respects any byelaw made under the provisions of this subsection the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be the Minister except to the extent that any such byelaw relates to any byelaws made under section 11 of the Petroleum (Consolidation) Act 1928 or the Advertisements Regulation Acts 1907 and 1925 in which cases the confirming authority shall be the Secretary of State.

(4) In their application to the added areas any byelaws continued in force by the foregoing provisions of this section shall have effect as if they had been made by the Corporation and as if the added areas or the part thereof to which such byelaws apply were referred to therein instead of the area to which they now apply.

(5) All other byelaws made by the Corporation or by the watch committee of the existing borough and in force immediately before the appointed day shall apply to the borough until repealed or altered and any byelaws made by the county council or the standing joint committee of the county shall subject to the provisions of this section on that day cease to apply within the added areas.

A.D. 1937.

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PART VI.

—cont.

Byelaws regulations and scales of charges. 18 & 19 Geo. 5. c. 32. 7 Edw. 7. c. 27. 15 & 16 Geo. 5. c. 52.

A.D. 1937.

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PART VI
—cont.

(6) Any proceedings which if this Act had not been passed might have been taken for any offence against any byelaw committed before the appointed day within the added areas may be taken by the Corporation.

(7) In this section “byelaws” includes any regulation scale of charges list of tolls or table of fees or payments and the phrase “byelaws made under the Public Health Acts” means byelaws which if they had been made immediately before the appointed day would have required to be confirmed by the Minister.

Burial
board.

40.—(1) The area of the Corporation as burial board for the existing borough shall be altered by the inclusion in such area of the added areas and the Corporation shall have within such area as so altered to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906 :

Provided that no approval sanction or authorisation of the vestry of a parish shall be required in respect of any act of the Corporation as the burial board.

(2) Any table of fees and charges in force in respect of any existing burial ground maintained by the Corporation shall extend and apply to inhabitants of the burial area of the Corporation as altered by this section as such table applies to inhabitants of the existing burial area of the Corporation.

(3) Nothing in this Act shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired prior to the appointed day or prejudicially affect any right privilege or authority which immediately prior to the appointed day is exerciseable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

PART VII.

RATING AND VALUATION.

Apportion-
ment of
balances
and sums re-
ceived under
precepts.

41.—(1) As soon as practicable after the appointed day the rural council shall as regards any cash balance in their hands at the appointed day estimate the proportion thereof derived from contributions paid by any

part of the added areas and subject to a deduction on account of undischarged liabilities in respect of such part of the added areas accruing up to the appointed day shall transfer such amount to the Corporation.

A.D. 1937.

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PART VII.
—cont.

(2) Any sum received after the appointed day by the rural council under a precept issued or rate made before that day in respect of any part of the added areas shall be dealt with in the manner prescribed by subsection (1) of this section.

(3) The apportionment under this section of any balance or sum received shall be subject to review on an adjustment under this Act.

42.—(1) Notwithstanding the alterations of areas effected by this Act all contribution orders and precepts made or issued before the appointed day shall be as valid in law as if this Act had not been passed.

Contribu-
tion orders
precepts and
arrears of
rates.

(2) All rates not collected immediately before the appointed day in respect of hereditaments within the added areas shall be collected and recovered as if this Act had not been passed.

(3) Any rates or sums so collected and recovered shall be a matter for adjustment under this Act.

43. For the purposes of all valuation lists of the borough under the Rating and Valuation Act 1925 the amount of the deduction to be made under paragraph (c) of subsection (1) of section 22 of that Act from the net annual value of such rateable hereditaments within the added areas as are included in class (3) of the hereditaments specified in column (1) of Part II of the Second Schedule to that Act shall be the same as the amount of the deduction made from the net annual value of similar hereditaments in the existing borough and such adjustments of the value of those hereditaments in the added areas shall be made by the Corporation as may be necessary to give effect to the provisions of this section.

Deduction
in ascertain-
ing rateable
value of
tithes rail-
ways &c.

44.—(1) As from the appointed day—

(a) the added areas shall be deemed to form part of the rating area and of the assessment area of the borough;

(b) the valuation list of the existing borough and the portions of the valuation list of the rural

Application
of Rating
and Valua-
tion Act
1925.

A.D. 1937.

PART VII.

—cont.

district (modified where necessary in order to give effect to the provisions of the last preceding section of this Act) which relate to hereditaments within the added areas shall together form the valuation list of the borough;

(c) the remaining portions of the valuation list of the rural district shall be the valuation list of the rural district as altered by this Act;

(d) any scheme made under the Rating and Valuation Act 1925 for the constitution of an assessment area which includes any part of the added areas shall be varied by excluding such part from such assessment area and any person who immediately before that day is the representative of any part of the added areas on any assessment committee shall cease to represent the same but shall subject to any scheme of the county council under section 16 of the said Act relating to any area which after the appointed day will form or forms part of the county continue to be the representative on such assessment committee of the area which he represented immediately before that day as altered by this Act until he would go out of office in the ordinary course.

(2) Except as expressly provided by this Act nothing in this Act shall affect the provisions of the Rating and Valuation Act 1925.

PART VIII.

OFFICERS.

Meaning of
“officer”
in certain
sections of
this Part of
this Act.

45. In the sections of this Part of this Act of which the marginal notes are “Officers of Corporation continued” and “Existing officers” the expression “officer” unless the context otherwise requires includes a servant.

Officers of
Corporation
continued.

46. The town clerk and all other officers of the Corporation of the existing borough who hold office immediately before the appointed day shall continue

[1 EDW. 8. &
1 GEO. 6.]

*Hastings Extension
Act, 1937.*

[Ch. lxiv.]

to be the town clerk and officers of the Corporation of the borough and shall hold their offices by the same tenure as before that day.

A.D. 1937.

PART VIII.

—cont.

47.—(1) All persons who at the date of the passing of this Act are officers employed whole time by the county council or the rural council exclusively in the added areas shall be transferred to and become officers of the Corporation.

Existing
officers.

(2) Every officer so transferred shall hold his office by the same tenure and upon the same terms and conditions as if this Act had not been passed and while performing analogous duties to those which he was required to perform immediately before the appointed day shall receive not less salary or remuneration and be entitled to not less superannuation allowance (if any) than the salary remuneration or superannuation allowance to which he would have been entitled if this Act had not been passed.

(3) Every officer so transferred who on the appointed day holds a post duly designated as established for the purpose of the Local Government and other Officers' Superannuation Act 1922 shall be deemed to have been transferred to a designated post in the service of the Corporation within the meaning of that Act and the provisions of that Act shall apply as if consent to such transfer for the purposes of that Act and of the Lewes and District Joint Superannuation Scheme 1929 had been given.

(4) The Corporation may distribute the business to be performed by the transferred officers in such manner as the Corporation may think proper and every officer shall perform such duties in relation to that business as may be directed by the Corporation and the Corporation may abolish the office or determine the appointment of any officer subject nevertheless to the consent of the Minister if the officer is removable only with the consent of or by the Minister.

(5) Where by virtue of section 51 of the Rating and Valuation Act 1925 the Poor Law Officers' Superannuation Act 1896 applies to an officer who is transferred from the service of the rural council to the service of the Corporation the provisions of the said Act of 1896 shall continue to apply to the officer notwithstanding his transfer by this Act.

59 & 60 Vict.
c. 50.

A.D. 1937.

PART VIII.

—cont.

Compensa-
tion to
existing
officers.

48.—(1) Every officer in office at the passing of this Act who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by determination of his appointment (otherwise than for misconduct) or by diminution or loss of emoluments (and for whose compensation for that loss no other provision is made by any enactment for the time being in force) shall be entitled to compensation for that loss from the Corporation.

(2) The provisions of subsections (2) to (5) of section 150 of the Local Government Act 1933 and of the Fourth Schedule to that Act shall apply as if this Act were an Order made under Part VI of that Act.

(3) For the purposes of this section and the enactments thereby applied the expression “emoluments” has the same meaning as in the Local Government Act 1933.

PART IX.

SUPPLEMENTARY PROVISIONS.

Schemes for
administra-
tion of Births
and Deaths
Registration
Acts 1836
to 1929.

49. Nothing in this Act shall affect the area of any existing registration district or sub-district without prejudice however to the exercise of the powers contained in the Births and Deaths Registration Acts 1836 to 1929 as to the alteration thereof.

Town
planning.
22 & 23
Geo. 5. c. 48.

50.—(1) Any resolution passed or other proceeding taken by the county council or the rural council under the Town and Country Planning Act 1932 or any enactment thereby repealed (including the making of any agreement or order or the giving of any approval consent or notice under that Act or repealed enactment) shall in so far as it relates to land within the added areas have effect as if it had been passed or taken by the Corporation in respect of that land.

(2) Any dispensation approval or consent given by the Minister under or in pursuance of the Town and Country Planning Act 1932 or any enactment thereby repealed shall so far as it relates to land within the added areas have effect as if the same had been given to the Corporation.

[1 EDW. 8. &
1 GEO. 6.]

*Hastings Extension
Act, 1937.*

[Ch. lxiv.]

51.—(1) All rate books books of account minutes of proceedings deeds papers and writings belonging to any existing parish which comprises part of the added areas in relation exclusively to the added part thereof and all documents directed by law to be kept with the public books writings and papers of those parishes in relation exclusively to the added areas or any part thereof except any book or document relating to the affairs of the church or ecclesiastical charities or to a parochial non-ecclesiastical charity shall be deposited in such custody as the Corporation may direct.

A.D. 1937.

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PART IX.

—cont.

Parish
books and
documents.

(2) Any ratepayer of any of the said existing parishes shall at all times have the same right of inspection and of making extracts from the books minutes deeds papers or writings referred to in this section as he would have had if this Act had not been passed.

52.—(1) For the purposes of the register of local government electors of the borough prepared in the year nineteen hundred and thirty-eight and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have formed part of the borough as from the first day of the qualifying period for the register for the year nineteen hundred and thirty-eight.

Provisions
as to
register of
electors.

(2) If the register of local government electors for any area affected by this Act is not so framed as to show the persons entitled to vote at an election to be held for a ward or other voting area the town clerk in the case of an election for a voting area within the borough or the registration officer of the parliamentary county of East Sussex in the case of an election for any other voting area shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

(3) Any additional expense incurred by the registration officer which may be solely attributable to an alteration in the arrangement of a new register of electors or to a re-arrangement of an existing register of electors under the foregoing provisions of this section shall be defrayed by the Corporation.

A.D. 1937.

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PART IX.
—cont.

(4) It shall be the duty of any officer designated under article 3 of the Overseers Order 1927 by the Corporation or by the rural council for the performance of the duties of overseers in relation to the preparation of the register of electors to render such assistance as may be required by the town clerk or the registration officer for the purpose of any alteration or re-arrangement authorised by subsection (2) of this section.

(5) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary or desirable to give effect to the provisions of this section and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Duplicate
entries in
electors
lists.

53.—(1) The registration officer of the parliamentary county of East Sussex shall supply the registration officer of the parliamentary borough of Hastings on publication with a sufficient number of copies of the electors lists the lists of objections to the electors lists the lists of claimants and the lists of objections to claimants for each registration unit comprising any part of the added areas and shall forthwith notify the registration officer of the said parliamentary borough of his decisions on any objections or claims in respect of any such registration unit.

7 & 8 Geo. 5.
c. 64.

(2) It shall be the duty of the registration officer of the parliamentary borough of Hastings to issue such notices and otherwise to take such steps as are required by rule 23 in the First Schedule to the Representation of the People Act 1918 in order to secure that no person is registered as a local government elector in respect of more than one qualification in the borough for the purpose of borough council elections.

(3) Where the registration officer of the parliamentary borough of Hastings considers (whether on account of an expression of choice by a person affected by a duplicate entry or otherwise) that any correction required for the purpose aforesaid should be made in the electors lists of any registration unit comprising any part of the added areas he shall forthwith notify the registration officer of the parliamentary county of East

Sussex and that officer shall make such correction accordingly. A.D. 1937.

PART IX.
—cont.

(4) This section shall apply to the preparation of the register in the year nineteen hundred and thirty-eight and of later registers.

54. For the purpose of summoning jurors and of jury service any parish affected by this Act shall be deemed to continue unaltered until a new jurors' book for the parish as altered comes into force. Juryservice.

55.—(1) The local registrars under the Land Charges Act 1925 and the rules made thereunder for the county and for the rural district shall within one month after the appointed day supply to the local registrar for the borough an office copy of every entry in the local land charges register relating to any premises situate within the added areas and shall be paid by the Corporation in respect thereof such fees as are prescribed by the said rules. Local land charges registers. 15 & 16 Geo. 5. c. 22.

(2) The local registrar for the borough shall within one month after the receipt of the office copy mentioned in subsection (1) of this section enter the same with any necessary modifications in the appropriate part of the local land charges register of the borough.

(3) Until the entries are made as aforesaid or until the expiration of two months from the appointed day whichever be the earlier day the following provisions shall have effect in respect of all land within the added areas :—

(a) The local registrar for the borough shall give notice to any person desiring to make a personal search that an additional search should be made in the registers of the rural district and of the county;

(b) Where application is made for an official search the local registrar for the borough shall issue free of charge a certificate of official search in the register of the borough and shall forward to the local registrar for the rural district the application received by him together with the fees paid in respect thereof and shall also

A.D. 1937.

PART IX.
—cont.

forward to the local registrar for the county a copy of any such application;

- (c) The local registrar for the rural district and the local registrar for the county shall permit and make such searches and furnish such office copies and certificates as they would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this Act had not been passed;
- (d) The fees in respect of searches permitted or made and in respect of certificates furnished by the local registrar for the county in pursuance of the provisions of paragraph (c) of this subsection shall be paid by the Corporation;
- (e) Where an entry of a local land charge which has been duly made in the local land charges register of the county or of the rural district is required by this section to be transferred from the register of the county or the rural district to the register of the borough such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register of the borough.

Financial
adjust-
ments.

56.—(1) Where in consequence of this Act any adjustment of any property income debts liabilities or expenses or of any financial relations is required an adjustment shall be made between the councils or other authorities affected under and in accordance with sections 151 and 152 of the Local Government Act 1933 as if this Act were an Order made under Part VI of that Act.

(2) This section shall not extend to any matter for the adjustment of which provision is made in the section of this Act whereof the marginal note is "Adjustment for purposes of licensing."

Adjustment
as to
properties.

57. In any adjustment between the Corporation and any council or other authority which may be made in consequence of this Act regard shall be had to the

[1 EDW. 8. &
1 GEO. 6.]

*Hastings Extension
Act, 1937.*

[Ch. lxiv.]

interest or share (if any) of the added areas or any part thereof or of any council or authority in any property—

A.D. 1937.

—
PART IX.

—cont.

(a) which is retained by or transferred to such council or other authority after or as from the appointed day who will thereby be relieved from providing accommodation; or

(b) which was prior to the appointed day subject to beneficial user by the inhabitants of the added areas or any part thereof respectively; or

(c) which or some part of which is realisable;

and due credit shall be given in such adjustment to the Corporation or any other council or authority in respect of such interest or share (if any) except to the extent to which the property will remain or become a burden on the council or other authority by whom it is retained or to whom it is transferred.

58. An alderman or councillor who is to continue in office after the appointed day shall not during his term of office current immediately before that day be deemed to lose his qualification for being an alderman or councillor by reason of the alterations of area made by this Act.

Saving for
qualification
of aldermen
and coun-
cillors.

59.—(1) No alteration effected by this Act shall affect any notices given or proceedings taken by or on behalf of the county council under the Private Street Works Act 1892 in relation to any street situate within the added areas or any part thereof but such proceedings may be continued and completed in accordance with the said Act by the Corporation.

Saving for
private
street works.
55 & 56 Vict.
c. 57.

(2) Where before the appointed day any works under the Private Street Works Act 1892 have been completed in a street within the added areas or any part thereof no alteration effected by this Act shall affect the liability of any owner to defray any sum which may be apportioned upon him in respect of the cost of the works and any such sum shall be recoverable by the Corporation.

(3) Any sum so recoverable shall be a matter for adjustment under this Act.

A.D. 1937.

PART IX.
—*cont.*
Savings for
actions con-
tracts &c.

60.—(1) No alteration effected by this Act shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any local or other authority or any contract deed bond agreement or other instrument (subsisting immediately before the appointed day) entered into or made by that authority or their predecessors :

Provided that—

- (a) any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any such authority in relation exclusively to any part of the added areas may be continued prosecuted and enforced by or against the Corporation ;
- (b) all contracts deeds bonds agreements and other instruments (subsisting immediately before the appointed day) entered into or made by any such authority (or their predecessors) in relation exclusively to any part of the added areas shall be continued and may be enforced as fully and effectually as if instead of that authority (or their predecessors) the Corporation had been a party thereto ; and
- (c) The matters referred to in this section shall be matters for adjustment under and in accordance with sections 151 and 152 of the Local Government Act 1933 as if this Act were an order made under Part VI of that Act.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Act.

Other
savings.

61. Nothing in this Act shall—

- (i) restrict any power under the Local Government Act 1929 or the Local Government Act 1933 of altering any areas or the constitution of any authority or committee ;

[1 EDW. 8. &
1 GEO. 6.]

*Hastings Extension
Act, 1937.*

[Ch. lxiv.]

- (ii) affect the limits of the parliamentary borough of Hastings or the parliamentary county of East Sussex or the powers of the Corporation or the county council for the division of their respective parliamentary borough and county into polling districts for parliamentary elections or for the division of the county into polling districts for the election of county councillors or any existing order or scheme for any of those purposes or for naming the polling places at any election;
- (iii) affect the ecclesiastical divisions of any parish or prejudice vary or affect any power right interest or jurisdiction in or over or in connection with any charitable endowment;
- (iv) affect land tax; or
- (v) affect any limitation imposed on the duration of any byelaw by the Public Health Act 1936.

A.D. 1937.

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PART IX.
—cont.

62. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Crown
rights.

PART X.

FINANCE.

63.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums requisite and they shall pay off all moneys so borrowed within such periods as they

Power to
borrow.

A.D. 1937. may determine not exceeding those respectively mentioned in the second column of the said table:—

PART X.
—cont.

(1)	(2)
Purpose.	Period for repayment calculated (except when otherwise stated) from the date or dates of borrowing.
(a) The purpose of making any payment to any authority under this Act or under any enactment the provisions of which are applied thereby (including the payment or purchase in the name of the Corporation of any annuity payable by them under any provision contained in or applicable to the provisions of this Act which annuity the Corporation are hereby empowered to purchase).	Forty-five years.
(b) The purpose of making any payment under the provisions of the section of this Act of which the marginal note is "Compensation to existing officers."	Twenty years.
(c) The payment of the costs charges and expenses of this Act.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

Modes of
raising
money.

64. In addition to the modes by which money may be raised under section 196 of the Local Government Act 1933 the Corporation may raise any money which they are authorised to borrow under this Act—

(a) by the issue of Corporation stock;

(b) by the issue of bonds;

1 Edw. 8. & under and subject to the provisions of the Hastings
1 Geo. 6. Corporation (General Powers) Act 1937.
c. lxxviii.

[1 EDW. 8. &
1 GEO. 6.]

*Hastings Extension
Act, 1937.*

[Ch. lxiv.]

65. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 of the Local Government Act 1933 shall apply accordingly.

A.D. 1937.

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PART X.

—cont.

Inquiries by
Minister.

66. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of moneys to be borrowed under this Act for that purpose.

Costs of Act.

A.D. 1937.

The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

PART I.

LOCAL ACTS.

Session and chapter.	Short title.
2 Will. 4. c. xci - - -	The Hastings Paving Act 1832.
48 & 49 Vict. c. cxcvii -	The Hastings Improvement Act 1885.
63 & 64 Vict. c. cclxvi -	The Hastings Corporation Act 1900.
1 & 2 Geo. 5. c. xxxix -	The Hastings Corporation (Water and Finance) Act 1911.
14 & 15 Geo. 5. c. lxxxvii -	The Hastings Corporation Act 1924.
18 & 19 Geo. 5. c. xxvii -	The Hastings Corporation Act 1928.

PART II.

CONFIRMATION ACTS AND PROVISIONAL ORDERS.

Session and chapter.	Confirmation Act.	Order.
14 & 15 Vict. c. xcvi.	The Public Health Supplemental Act 1851 (No. 2).	Order dated 20th March 1851.
23 & 24 Vict. c. cxviii.	The Local Government Supplemental Act 1860 (No. 2).	Order dated 15th June 1860.
28 & 29 Vict. c. cx.	The Local Government Supplemental Act 1865 (No. 4).	Order dated 21st January 1865.
38 & 39 Vict. c. ccxi.	The Local Government Board's Provisional Orders Confirmation (Abingdon Barnsley &c.) Act 1875.	Order dated 14th June 1875.

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Session and chapter.	Confirmation Act.	Order.
40 & 41 Vict. c. cxxv.	The Local Government Board's Provisional Orders Confirmation (Bridlington &c.) Act 1877.	Order dated 11th May 1877.
48 & 49 Vict. c. civ.	The Pier and Harbour Orders Confirmation Act 1885.	The St. Leonards Pier Order 1885.
54 & 55 Vict. c. cvii.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1891.	Order dated 12th May 1891.
56 & 57 Vict. c. cvii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1893.	Order dated 28th March 1893.
60 & 61 Vict. c. cxliv.	The Local Government Board's Provisional Orders Confirmation (No. 17) Act 1897.	Order dated 11th May 1897.
61 & 62 Vict. c. ccv.	The Electric Lighting Orders Confirmation (No. 5) Act 1898.	Order dated 12th August 1898.
4 & 5 Geo. 5. c. clxxxi.	The Pier and Harbours Orders Confirmation (No. 2) Act 1914.	The Hastings Cor- poration (Pier) Order 1914.

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—cont.

PART III.

OTHER ORDERS.

Title of Order.	By whom made.	By whom confirmed.
The Hastings Confirmation Order 1908.	The Corporation -	The Local Government Board.
The Hastings Land Regis- tration Order 1928.	The Privy Council.	
Wild Birds Protection (County Borough of Hastings) Order 1933.	The Secretary of State.	

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THE SECOND SCHEDULE.

DESCRIPTION OF THE BOROUGH OF HASTINGS AS
EXTENDED BY THIS ACT.

PART I.

The existing borough of Hastings.

PART II.

NOTE :—In the following description the enclosures referred to are those shown on the 1/2500 Ordnance map Sussex (East) sheets LXXI.1 (edition of 1928) LVIII.5 6 9 10 and 13 (edition of 1929) or one of those sheets and thereon described by the numbers respectively referred to in this description and unless otherwise stated are situate in the existing parish of Hollington Rural.

So much of the existing parish of Hollington Rural as lies between the boundary of the existing borough and a line commencing at the point at which the boundary of the existing borough meets the boundary between the existing borough of Bexhill and the existing parish of Hollington Rural and drawn thence along such last-mentioned boundary to a point 15 feet or thereabouts measured in a northerly direction from the south-east corner of Coach Bridge thence straight to the south-west corner of the enclosure numbered 347 thence along the western boundary of the said enclosure to the centre line of the dyke forming the boundary between the enclosure numbered 250 and the enclosures numbered 347 and 348 thence along the centre line of the said dyke to the point at which the boundary between the said enclosure numbered 250 and the enclosure numbered 301 if projected would meet the said centre line thence along the line of such projection along such last-mentioned boundary and along the boundary between the enclosures numbered 301 303A 304 and 307 and the enclosures numbered 251 300 and 253 to the southern side of the public road leading from Crowhurst to Hollington thence straight to the south-east corner of the enclosure numbered 299 thence along the line of the northern face of the bridge carrying the said road over the Southern Railway to the eastern fence of the Southern Railway thence

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along the said fence to the point at which the boundary of the existing parish of Hollington Rural intersects the said fence thence along the boundary between the existing parish of Hollington Rural and the existing parish of Crowhurst to a point on such boundary distant 720 feet or thereabouts measured in a southerly direction along such boundary from the point at which such boundary meets the boundary between the existing parish of Battle and the existing parish of Crowhurst thence straight to a point on the boundary between the existing parish of Hollington Rural and the existing parish of Battle at the south-east corner of the enclosure numbered 760B in the existing parish of Battle thence along such last-mentioned boundary to a point in the enclosure numbered 51 distant 220 feet or thereabouts measured along the said parish boundary in a north-easterly direction from the southern boundary of the said enclosure thence in a south-easterly and easterly direction parallel to and at a distance of 300 feet from the centre line of the public road leading from Battle to Ore to a point in the enclosure numbered 51 distant 163 feet or thereabouts measured in a north-westerly direction from the south-west corner of the enclosure numbered 26 and distant 200 feet or thereabouts measured in a south-westerly direction from the north-west corner of the said enclosure numbered 26 thence straight to a point on the western boundary of the enclosure numbered 26 distant 145 feet or thereabouts measured in a northerly direction from the south-west corner of the said enclosure numbered 26 thence in a northerly direction along the said western boundary and along the northern boundary of the said enclosure numbered 26 for a distance of 140 feet or thereabouts thence straight to the most westerly corner of the enclosure numbered 11 thence along the boundary between the enclosure numbered 27 and the enclosures numbered 11 and 4 to the north-east corner of the said enclosure numbered 4 thence straight to the north-east corner of the enclosure numbered 19 thence along the north-eastern boundary of the said enclosure numbered 19 to the point at which it is intersected by the boundary between the existing parish of Hollington Rural and the existing parish of Ore thence along such last-mentioned boundary to and terminating at the point at which it meets the boundary of the existing borough.

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2ND SCH.
—cont.

PART III.

NOTE :—In the following description the enclosures referred to are those shown on the 1/2500 Ordnance map Sussex (East) (edition of 1929) sheets LVIII.6 LVIII.10 and LVIII.11 or one of those sheets and thereon described by the numbers respectively referred to in this description and are situate in the existing parish of Ore.

A.D. 1937.

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2ND SCH.
—cont.

So much of the existing parish of Ore as lies between the boundary of the existing borough and a line commencing at the point at which the boundary of the existing borough meets the boundary between the existing parish of Hollington Rural and the existing parish of Ore and drawn thence along such last-mentioned boundary to the southern boundary of the enclosure numbered 128A thence along the boundary between the enclosures numbered 130 132A 132 127 135 and 137 and the enclosures numbered 128A 128 124A 126A and 126 to the north-eastern corner of the enclosure numbered 137 thence straight to the south-western corner of the enclosure numbered 125 thence along the boundary between the enclosures numbered 138 and 138B and the enclosures numbered 125 and 140A thence straight to the point at which the most westerly boundary of the enclosure numbered 146 meets the southern boundary of that enclosure thence along the last-mentioned boundary for a distance of 270 feet or thereabouts thence straight to the point of junction of the boundaries of the enclosures numbered 153A 155A and 156 thence along the boundary between the enclosures numbered 156 and 155A and the enclosures numbered 153A 152 and 151 thence straight to the south-west corner of the enclosure numbered 159 thence along the boundary between the enclosures numbered 239A and 239 and the enclosures numbered 159 and 192 thence straight to the most westerly point of the enclosure numbered 200 thence along the boundary between the enclosures numbered 241 242 243 236 207 233 208 and 210 and the enclosures numbered 200 201 202 203 206 209 and 211 thence straight to the point of junction of the eastern side of Ivyhouse Lane with the south side of the footpath leading to Rock Lane thence along the eastern side of Ivyhouse Lane to the northern corner of the enclosure numbered 229 thence along the north-eastern and eastern boundaries of that enclosure to the point at which the boundary between the enclosures numbered 215 and 226 if projected in a westerly direction would meet the said eastern boundary thence along the line of such projection thence straight to the north-west corner of the enclosure numbered 261 thence along the boundary between the enclosures numbered 261 265 and 268 and the enclosures numbered 262 and 263 thence straight to the south-western corner of the enclosure numbered 221 thence along the boundary between the enclosures numbered 270 and 277 and the enclosures numbered 221 and 220 to the point at which it is intersected by the boundary between the existing parish of Ore and the existing parish of Guestling thence along such last-mentioned boundary to its junction with the boundary between the existing parish of Ore and the existing parish of Fairlight thence along such last-mentioned boundary to and terminating at the point at which it meets the boundary of the existing borough.

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PART IV.

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NOTE :—In the following description the enclosures referred to are those shown on the 1/2500 Ordnance map Sussex (East) (edition of 1929) sheets LVIII.11 and LVIII.12 or one of those sheets and thereon described by the numbers respectively referred to in this description and are situate in the existing parish of Guestling.

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—cont.

So much of the existing parish of Guestling as is included within a line commencing at the point at which the boundary between the existing parish of Guestling and the existing parish of Ore meets the boundary between the existing parish of Guestling and the existing parish of Fairlight and drawn thence along the boundary between the existing parish of Guestling and the existing parish of Ore to the point at which it intersects the south-eastern boundary of the enclosure numbered 644 thence along the south-eastern and north-eastern boundaries of the said enclosure numbered 644 to a point 560 feet or thereabouts measured in a north-westerly direction from the eastern corner of the said enclosure numbered 644 thence straight to the point of junction of the boundaries of the enclosures numbered 646 631 and 629 thence along the boundary between the enclosures numbered 629 and 627 and the enclosures numbered 631 and 632 thence straight to a point on the northern boundary of the enclosure numbered 625 distant 115 feet or thereabouts measured in a north-westerly direction from the most southerly corner of the enclosure numbered 626 thence along the boundary between the enclosures numbered 625 624 623 622 617 and 665A and the enclosures numbered 626 615 621 616 666 and 665B thence straight to the south-west corner of the enclosure numbered 696 thence along the south-western boundary of the said enclosure numbered 696 to the point at which it is intersected by the boundary between the existing parish of Guestling and the existing parish of Fairlight thence along the last-mentioned boundary to and terminating at the point of commencement hereinbefore described.

PART V.

NOTE :—In the following description the enclosures referred to are those shown on the 1/2500 Ordnance map Sussex (East) (edition of 1929) sheets LVIII.11 LVIII.12 LVIII.16 and LIX.13 or one of those sheets and thereon described by the numbers respectively referred to in this description and are situate in the parish of Fairlight.

So much of the existing parish of Fairlight as lies between the boundary of the existing borough and a line commencing at the point at which the boundary of the existing borough meets the boundary between the existing parish of Ore and the

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2ND SCH.
—cont.

existing parish of Fairlight and drawn thence along such last-mentioned boundary to the junction of such boundary with the boundary between the existing parish of Guestling and the existing parish of Fairlight thence along such last-mentioned boundary to the point at which it intersects the south-western boundary of the enclosure numbered 448 thence along the boundary between the enclosures numbered 447 445A 446 444 and 385 and the enclosures numbered 448 449 445 443 and 387 thence straight to the point of junction of the boundaries of the enclosures numbered 392 396 and 395 thence along the boundary between the enclosures numbered 392 393 and 399A and the enclosures numbered 395 398 394 399 and 403 thence straight to the most westerly point of the enclosure numbered 401 thence along the boundary between the enclosures numbered 411 293 270 270A and 216 and the enclosures numbered 400 292 274 and 273 thence straight to the south-eastern corner of the enclosure numbered 279 thence along the northern and eastern boundaries of the enclosure numbered 210 thence straight to and terminating at the point at which the line of the said boundary if projected in a south-easterly direction would meet the low-water mark of ordinary tides.

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